

**ATTACHMENT 24 – LETTER FROM BECHTEL / PARSONS BRINCKERHOFF
(AUTHORIZED REPRESENTATIVE) TO MODERN CONTINENTAL
COMPANY DATED MARCH 15, 2001 ENCLOSING A FULLY EXECUTED
ORIGINAL OF THE CONTRACT MODIFICATION
(4 pages)**



Massachusetts Turnpike Authority
Central Artery/Tunnel Project

March 15, 2001

Letter No.: C09B2-01319
File No.: CN-9.09B2.02
CN-9.09B2.25.158
CN-9.09B2.26.158

Mr. Robert Coutts
Project Manager
Modern Continental Companies, Inc.
600 Memorial Drive
Cambridge, MA 02210

Subject: Central Artery (I-93)/Tunnel (I-90) Project
Contract No. 99119-C09B2
I-90 Seaport Access Tunnel Finishes
Contract Modification 158FW - Anchor Bolt Testing In HOV

Reference: MCC Letter No. 0465, dated February 22, 2001

Dear Mr. Coutts:

Enclosed, for your records, is a fully executed original of the above referenced Contract Modification.

If you have any questions in this matter, please contact myself at 350-7594 ext 56.

Sincerely,

BECHTEL/PARSONS BRINCKERHOFF


Stephen A. Murphy
Resident Engineer
Authorized Representative of
the Project Director

SAM/CFC/ks
ks

Enclosure: Contract Modification 158FW

cc: M. Charney



Central Artery/Tunnel

FIELD WORK ORDER MODIFICATION

CONTRACT NO: 99119 — C09B2

MODIFICATION NO: 158FW

CONTRACTOR: MODERN CONTINENTAL CONSTRUCTION CO. INC.

EXTRA WORK ORDER NO: 158

CONTRACT DESCRIPTION: I-90 SEAPORT ACCESS TUNNEL FINISHES

SUMMARY DESCRIPTION OF THIS MODIFICATION (for reference only):

ANCHOR BOLT TESTING IN HOV

PROPOSED FUNDING SOURCE:	☒ EXISTING CONTINGENCY	CAUSE CODES:
		1 DESIGN DEVELOPMENT
ORIGINAL CONTINGENCY:	COST \$ 4,489,635.00	TIME 300 Days
INCREASES TO CONTINGENCY:	\$.00	0 Days
AVAILABLE CONTINGENCY:	\$ 4,489,635.00	300 Days
CONTINGENCY USED:	\$ 2,805,570.46	0 Days
CURRENT BALANCE:	\$ 1,684,064.54	300 Days
THIS MODIFICATION:	\$ 16,396.50	0 Days
REMAINING BALANCE:	\$ 1,667,668.04	300 Days

SCHEDULE CHANGE: N/A

PRICING METHOD: ☐ BLS ☒ LS
☐ UP ☐ T&M (NTES _____)

GENERAL DESCRIPTION AND JUSTIFICATION FOR CHANGE:**Description:**

Provide compensation to the contractor for re-testing the ceiling adhesive anchor bolts in the HOV Ramp of the C04A2 area.

Justification:

Due to several failures of ceiling anchor bolts in the HOV, the Project determined that all of the bolts that were installed had to be re-tested at 6350 lbs. tension. The 6350 lbs represents the manufacturer's allowable bond strength for a properly installed adhesive anchor. The Contractor complied and tested all the anchor bolts but made claim for the re-testing costs as in their opinion, the Contract calls for 3250 lbs tension.

This issue was scheduled for hearing at Senior Partners since both parties could not initially come to agreement. However, in an effort to resolve this issue and not go to Senior Partners, since the total commercial value was minimal, an agreement was reached. The Project agreed to pay the re-testing costs for any anchor, which passed testing at 6350 lbs., and, to split the cost for anchors which were tested and passed at the 3250 level but failed to the 6350 level.

THE CONTRACT SCHEDULE OF PRICES AND QUANTITIES IS REVISED AS FOLLOWS:**Add:**

Item No.	Description	Quantity	Amount
001.099	RETESTING OF CEILING ANCHORS IN HOV.....	LS	\$16,396.50



Central Artery/Tunnel

FIELD WORK ORDER MODIFICATION (CONTINUATION SHEET)

CONTRACT NO: 99119_C09B2

MODIFICATION NO: 158FW

This Modification is made to the above referenced Contract, subject to the conditions set forth herein. Except to the extent otherwise expressly stated herein: The Contractor shall perform all work and furnish all labor, materials, tools, equipment and incidentals necessary to accomplish this Modification and to incorporate it into the Contract work, in strict compliance with Division I, General Requirements and Covenants, Article 4.01, entitled "Intent of the Contract Documents" and all existing requirements of the Contract, including but not limited to all specifications, drawings and incorporated standards.

Except as expressly incorporated herein, no documents or statements of any kind (including but not limited to any transmittals or correspondence) are part of or included in this Modification; provided however, that incorporated documents shall be deemed to include any documents expressly listed as incorporated in earlier parts of a multipart Modification unless expressly deleted.

Except for any specifically stated increase or decrease in Contract Time for completion and/or to Interim Milestones, no extension of time is due for this Modification.

Except to the extent expressly and clearly reserved herein, and subject only to the Contractor's right to timely dispute the Adjustment in Contract Price and/or Contract Time for a Unilateral Change Order as stated in the Contract, acceptance of the terms of this Modification constitutes full and final settlement of any and all claims, whether consequential, indirect or direct, resulting from or related to the Modification described herein.

This Modification and any payment made hereunder does not constitute an admission of liability by MHD or a waiver of insurance coverage by MHI or the Contractor.

Except as provided herein all terms and conditions of the Contract as heretofore modified remain unchanged.

The Contractor acknowledges and agrees that the Massachusetts Turnpike Authority (the MTA) is authorized to approve and execute Modifications for and on behalf of the Massachusetts Highway Department (the Department), the Contractor recognizes this authorization, and the Contractor agree that it does not have any contractual or other relationship with the MTA and that its sole recourse in connection with the Contract and all Modifications is with the Department.

ORIGINAL CONTRACT \$ 64,137,639.00

THIS CHANGE - INCREASE

\$16,396.50

AUTHORIZED REPRESENTATIVE SIGNATURE

Robert E. Stoffy *STEPHEN A. MURPHY*
MASSACHUSETTS TURNPIKE AUTHORITY

Date

3/14/01

THIRD PARTY

☐ YES☒ NO

ORGANIZATION: None

Not Required for this FWO

Date

☐ APPROVED☐ NOT APPROVED

CONTRACTOR SIGNATURE

Robert Colitti
Robert Colitti

Date

2/22/01

FHWA CONCURRENCE:

T. White Area Engineer

☒ APPROVED☐ NOT APPROVED☐ APPROVED, SUBJECT TO REMARKS

FHWA REMARKS:

3/8/01

Date